



Stephen Cooke <stephencooke.c@gmail.com>

NCC3896/2023 - Urgent Request for Clarification and Leave on Subpoenas for Medical Records7 messages

Stephen Cooke <stephencooke.c@gmail.com>

Fri, Nov 1, 2024 at 7:21 AM

To: FL General Processing <flgeneral.processing@fcfcoa.gov.au>

Cc: casemanager.jrFurner@fcfcoa.gov.au, Anna Roberts <aroberts@delaneyroberts.com.au>, JLM Admin <admin@jlmfamilylawyers.com.au>

Dear Judicial Registrar,

I am seeking urgent clarification regarding the status of subpoenas issued for my medical records from Chromis Occupational Medicine and Atune Psychology (Dr. Moisey).

Following the court orders of October 15, 2024, I issued subpoenas to both Chromis and Atune with leave granted. However, upon reviewing the Commonwealth Courts Portal, I noted the following:

- **Ms. Roberts' Subpoena to Atune** (October 9, 2024): Leave granted to Delaney Roberts Family Lawyers, JLM Family Lawyers Pty Ltd, Mr. Stephen Christopher Cooke, and Ms. Heather Anne Cooke to view.
- **Mr. Cooke's Subpoena to Atune** (October 15, 2024): Returned after action, but no leave granted for the subpoenaed item.
- **Chromis Occupational Medicine/Zoe Phillips**: No leave granted for the subpoenaed item.

Additionally, Ms. Roberts' subpoena to Atune requests my drug and alcohol test results, but as discussed during our last mention, I independently arranged these tests through Chromis, not Dr. Moisey. This is why I requested separate leave for Chromis.

Please note the urgency of this correction, as per the October 15 order: *Within 21 days of the date of these Orders, the parties shall finalise and send a joint letter of instruction to the Single Expert in relation to his appointment and requesting the preparation of the Single Expert Report.* Timely access to the subpoenaed documents is crucial for meeting this deadline and ensuring that the Single Expert has all necessary information.

To ensure comprehensive authorization and avoid procedural issues, may I kindly request that leave be granted to all parties on both subpoenas issued to Atune from myself and Ms. Roberts. I have attached a screenshot of the current portal status for reference ("Court Portal - Leave Status 2024-11-01 at 13-49-28.png").

Thank you for your attention to this urgent matter. I look forward to your guidance.

Sincerely,

Stephen Christopher Cooke

Residential Address: 7A Bakeri CCT, Warabrook, NSW 2304

PO Box 33, SHORTLAND, NSW 2307

Phone: 0412846712

Email: stephencooke.c@gmail.com

Case Reference Number: (P)NCC3896/2023

Follow me on LinkedIn: [\[www.linkedin.com/in/stephen-cooke-b853702ab\]](https://www.linkedin.com/in/stephen-cooke-b853702ab)

2 attachments



Court Portal - Leave Status 2024-11-01 at 13-49-28.png
88K



Orders Made Oct 15 2024 P_NCC3896_2023_14107768.pdf
526K

Stephen Cooke <stephencooke.c@gmail.com>

Fri, Nov 1, 2024 at 7:39 AM

To: FL General Processing <flgeneral.processing@fcfcoa.gov.au>

Cc: casemanager.jrFurner@fcfcoa.gov.au, Anna Roberts <aroberts@delaneyroberts.com.au>, JLM Admin <admin@jlmfamilylawyers.com.au>

Dear Judicial Registrar,

I'm reaching out to follow up on my earlier email regarding the subpoenas issued for my medical records. I've noticed an inconsistency in the **Notice of Request to Inspect** filed by Ms. Roberts to Atunes Health Centre. The **Date Issued** on her notice reads **11/10/2024**, but on the court portal, the issue date is listed as **09/10/2024**.

Could you let me know if this discrepancy could impact the procedural validity or processing of Ms. Roberts' notice? I want to ensure there are no issues with compliance or access to the subpoenaed materials due to this detail.

Thank you again for your attention and guidance.

Best regards,

Stephen Christopher Cooke
Residential Address: 7A Bakeri CCT

Follow me on LinkedIn: [\[www.linkedin.com/in/stephen-cooke-b853702ab\]](https://www.linkedin.com/in/stephen-cooke-b853702ab)

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JLM Admin <admin@jlmfamilylawyers.com.au>

Fri, Nov 1, 2024 at 9:12 AM

To: Stephen Cooke <stephencooke.c@gmail.com>

Cc: "casemanager.jrFurner@fcfcoa.gov.au" <casemanager.jrFurner@fcfcoa.gov.au>, Anna Roberts <aroberts@delaneyroberts.com.au>

Dear Mr Cooke,

The subpoena issued by the Court at your request to Chromis and Atune on 18/10/2024 are not returnable until 4.30pm on 5 November 2024. You will then need to file a Notice of Request to Inspect before the material becomes available, if produced.

The subpoena issued by the Court at the mother's request to Atune was filed on 09/10/2024 and sealed on 11/10/2024.

Perhaps you could consider obtaining some legal advice as to these procedural issues.

Regards

Jo Markham

Lawyer

JLM Family Lawyers

admin@jlmfamilylawyers.com.au

Ph: 0474 134 961

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mail if you are not the intended recipient. The sender is not responsible for any unauthorised alterations to this e-mail or attachments to it.

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Stephen Cooke <stephencooke.c@gmail.com>

Fri, Nov 1, 2024 at 11:08 AM

To: JLM Admin <admin@jlmfamilylawyers.com.au>

Cc: "casemanager.jrFurner@fcfcoa.gov.au" <casemanager.jrFurner@fcfcoa.gov.au>, Anna Roberts <aroberts@delaneyroberts.com.au>

Thank you for clarifying the details regarding the subpoenas. I apologize for any confusion on my end about the date they arrived at the court versus the returnable date.

Given that the subpoenas for Atune and Chromis are returnable on November 5th and in an effort to comply with the orders to get the joint letter off on Tuesday, perhaps we could simply include a note in the letter indicating that these documents will be available to Mr. Cowen after that date. We could also suggest scheduling Mr. Cowen's appointment for a week or two following November 5th, allowing him sufficient time to review in preparation for the Family Report.

Additionally, we should continue where you, Ms. Roberts, and Mr. Shepherd left off regarding the draft letter of instruction to Mr. Cowen, as Tuesday is quickly approaching. See attached "*Email Joint letter of instruction to single expert.pdf*" and "*DRAFT Joint letter of instruction to single expert.pdf*", which is where this was left for me. This may also be a good opportunity for us all to discuss the specific documents listed in the index to ensure clarity and transparency.

Thank you again for your guidance and support.

Kind regards,
Stephen Cooke

Follow me on LinkedIn: [\[www.linkedin.com/in/stephen-cooke-b853702ab\]](https://www.linkedin.com/in/stephen-cooke-b853702ab)

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2 attachments



DRAFT Joint letter of instruction to single expert.pdf

195K



Email Joint letter of instruction to single expert.pdf

662K

FL General Processing <FLGeneral.Processing@fcfcoa.gov.au>

Mon, Nov 4, 2024 at 1:34 AM

To: Stephen Cooke <stephencooke.c@gmail.com>

Good morning,

Thank you for your email.

The Court confirms this will not create any issues as the Subpoena was served within the provided time frame and material was produced before the last date of production.

Kind Regards

Lara

Client Service Officer

FL General Processing team | Strategic Support Hub

Federal Circuit and Family Court of Australia

p. 1300 352 000 | e. FLGeneral.Processing@fcfcoa.gov.au

www.fcfcoa.gov.au



FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA

For family law enquiries you can contact the Courts via Live chat at www.fcfcoa.gov.au, email enquiries@fcfcoa.gov.au or call 1300 352 000.

I acknowledge the Australian Aboriginal and Torres Strait Islander peoples as the first inhabitants of the nation and the traditional custodians of the lands where we live, learn and work.

From: Stephen Cooke <stephencooke.c@gmail.com>

Sent: Friday, 1 November 2024 2:39 PM

To: FL General Processing <FLGeneral.Processing@fcfcoa.gov.au>

Cc: Case Manager Judicial Registrar Furner <casemanager.jrFurner@fcfcoa.gov.au>; Anna Roberts <aroberts@delaneyroberts.com.au>; JLM Admin <admin@jlmfamilylawyers.com.au>

Subject: Re: NCC3896/2023 - Urgent Request for Clarification and Leave on Subpoenas for Medical Records

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FL General Processing <FLGeneral.Processing@fcfcoa.gov.au>
To: Stephen Cooke <stephencooke.c@gmail.com>

Mon, Nov 4, 2024 at 3:46 AM

Good morning,

to clarify, are you seeking leave to view the subpoena material?

Kind Regards

Matthew S
Client Service Officer
FL General Processing team | Strategic Support Hub
Federal Circuit and Family Court of Australia
p. 1300 352 000 | e. FLGeneral.Processing@fcfcoa.gov.au
www.fcfcoa.gov.au



FEDERAL CIRCUIT AND FAMILY COURT OF AUSTRALIA

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Subject: NCC3896/2023 - Urgent Request for Clarification and Leave on Subpoenas for Medical Records

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Stephen Cooke <stephencooke.c@gmail.com>
To: FL General Processing <FLGeneral.Processing@fcfcoa.gov.au>

Mon, Nov 4, 2024 at 5:24 AM

Good afternoon Lara and Matthew,

Thank you both for the clarification regarding the subpoenas and the returnable date. I appreciate the guidance, as I only recently came to understand that the returnable date is the first opportunity to file a Notice of Request to Inspect.

I understand that the subpoenas are returnable on November 5th, and I will ensure to follow the correct procedure from that date onward.

Thanks again for your assistance.

Kind regards,
Stephen Cooke

Stephen Christopher Cooke
Residential Address: 7A Bakeri CCT, Warabrook, NSW 2304
PO Box 33, SHORTLAND, NSW 2307
Phone: 0412846712
Email: stephencooke.c@gmail.com
Case Reference Number: (P)NCC3896/2023

From: FL General Processing <FLGeneral.Processing@fcfcoa.gov.au>
Sent: Monday, November 4, 2024 10:46 AM
To: Stephen Cooke <stephencooke.c@gmail.com>
Subject: Re: NCC3896/2023 - Urgent Request for Clarification and Leave on Subpoenas for Medical Records

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